

Court No. - 21

Case :- WRIT - C No. - 14627 of 2023

Petitioner :- Abdul Karim

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Balram Jee Verma

Counsel for Respondent :- C.S.C., Chandra Shekhar Singh

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

The instant petition has been filed challenging the demand notice dated 13.9.2022, issued by the respondent-Electricity Department, under Section 3 and 5 of the U.P. Government Electrical Undertakings (Dues Recovery) Act, 1958 and for a mandamus directing respondent no. 2 to decide the objection of the petitioner dated 22.2.2023, in accordance with law.

It appears that on 13.9.2022, the respondent-Electricity Department issued demand notice to the petitioner, requiring him to deposit Rs. 1,16,457/- on ground of theft of electricity. On 13.2.2023, the respondent-Electricity Department granted time to the petitioner to file objection within fifteen days. The petitioner had filed objection on 22.2.2023 in response to the notice dated 13.2.2023.

It is submitted by learned counsel for the petitioner that the demand notice dated 13.9.2022 is illegal, as by that time, no order of final assessment was passed by the respondents. The aforesaid fact is not disputed by Sri C.S. Singh, learned counsel appearing on behalf of the respondent-Electricity Department. He submits that the respondent-Electricity Department, realizing its mistake, had issued fresh notice dated 13.2.2023 and states that the respondents will pass a fresh order of final assessment, after taking into consideration the objection dated 22.2.2023.

Having regard to the admitted fact that there is no order of final assessment in existence, the demand notice dated 13.9.2022 is quashed, leaving it open to the respondent-electricity department to finalize the proceedings strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005.

The petition is disposed of accordingly.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 1.5.2023

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